

husband and wife praying for such investment was no consent by the wife, for the petition was regarded as that of the husband only (*f*), nor will a married woman be deemed to have consented to an investment by joining in a deed of appointment of new trustees, in which such an investment is recited or noticed, for the deed is executed *alio intuitu* (*g*). Where the consent of two trustees is not required to be by deed, one may consent by deed and the other by parol (*h*). Where the nature and object of the power and the circumstances of the case point to a *previous* or *contemporaneous* consent, then such previous or contemporaneous consent is necessary although not *expressly* required by the [*319] terms *of the power (*a*). If for instance, a consent be required for the substitution of one estate for another, the consent must precede or at all events accompany the execution of the power, for the question must be determined by the relative values of the two estates, at the time of substitution (*b*). But if an investment has been made without the required consent, a *cestui que trust* cannot complain of it, who, being *sui juris* at the time, has acquiesced in and adopted the investment (*c*).

27. **Investment in trade.** — A power to “invest at the *discretion* of the trustees” will not authorise an investment on the securities of the *United States*, or of the railway companies in that country (*d*), and a power “to place out at *interest*, or other way of *improvement*,” will not authorise an investment of the money in any trading concern (*e*); or in fact any investment but a Government or real or other

(*f*) *Norris v. Wright*, 14 Beav. 291, see 303. [But now, by 45 & 46 Vict. c. 75, and Rules of the Supreme Court, Order 16, Rule 16, a married woman petitions without a next friend, and a petition by husband and wife is not necessarily regarded as the petition of the husband only; and such a petition would, it is conceived, if presented under the wife's instructions, operate as a consent by her.]

(*g*) *Wiles v. Gresham*, 2 Drew. 258, see 267.

(*h*) *Offen v. Harman*, 1 De G. F. & J. 253.

(*a*) *Greenham v. Gibbeson*, 10 Bing. 374, *per* Tindal, C. J.

(*b*) *Greenham v. Gibbeson*, 10 Bing. 363.

(*c*) *Stevens v. Robertson*, 37 L. J. N. S. Ch. 499.

(*d*) *Bethell v. Abraham*, 17 L. R. Eq. 24.

(*e*) *Cock v. Goodfellow*, 10 Mod. 489.